

Pradeep Kalra vs Ms Nurturing Green Plantation Pvt Ltd on 9 December, 2024

THE COURT OF SH. VAIBHAV PRATAP SINGH
CIVIL JUDGE, PATIALA HOUSE COURTS, NEW DELHI

CNR No. DLND03-000336-2022

CS SCJ No. 175/2022

IN THE MATTER OF:

Pradeep Kalra
Proprietor of World Wide Graphics
C-143, Naraina Industrial Area
Phase-I, New Delhi -110066.

versus

1.

Nurturing Green Plantation Pvt. Ltd.

2. Manu Grover Director

3. Annu Grover Director All at:

C/o Nurturing Green Pvt. Ltd. Plot No. 7, 1105-A Advant Navis Business Park Section 142, Noida, Gautam Budhha Nagar Uttar Pradesh - 201301 . . . Defendants Date of Institution : 16.02.2022 Date of Reserving Judgment : 09.12.2024 Digitally Date of Judgment : 09.12.2024 signed by VAIBHAV VAIBHAV PRATAP PRATAP SINGH SINGH Date:

2024.12.09 16:52:42 +0530 Pradeep Kalra Vs. M/s Nurturing Green Plantation Pvt. Ltd. & Ors.

SUIT FOR RECOVERY OF RS. 1,29,256/- (RUPEES ONE LAKH TWENTY NINE THOUSAND FIFTY SIX ONLY) WITH PENDENTE-

LITE AND FUTURE INTEREST EX-PARTE JUDGMENT

1. The present suit is filed for recovery of Rs. 1,29,256/- by the Plaintiff against the Defendant.

2. Brief facts as alleged by the Plaintiff are that the plaintiff is the proprietor of World Wide Graphics, which Firm is engaged inter alia in graphics designing, printing of magazines, carry bags, tags, folders, stickers etc.

3. Defendant Nos. 2 and 3, who are directors of Defendant No. 1 company, purchased goods from the Plaintiff, the payment of which was to be made within 30 days of invoice, failing which, interest of 24 % per annum was to be paid till realisation. Goods were sold to the Defendants by four invoices: No. 1087 dated 05.10.2019 for Rs. 8,665/-, 1424 dated 27.11.2019 for Rs. 10,306/-, No. 1466 dated 03.12.2019 for Rs.25,984/- and No. 1750 dated 08.01.2020 for Rs. 41,216/-. All the goods supplied to the Defendants were accepted.

4. Despite requests by email, the defendants, though acknowledged the liability, but did not pay the same. There were no complaints about the goods and the same were consumed. VAIBHAV Digitally signed by VAIBHAV PRATAP PRATAP SINGH Date:

The defendants No. 2 & 3 have also swindled and siphoned off +0530

5.

Pradeep Kalra Vs. M/s Nurturing Green Plantation Pvt. Ltd. & Ors.

the money of defendant No.1 to their personal accounts and other firms, to cheat the creditors of Defendant no.1 company including the plaintiff herein and the defendant no. 1 company is only a face to shield the evil designs of defendant nos. 2 &3.

6. The rate of interest agreed between the parties for delayed payments was 24 % per annum and on the principle amount of Rs. 86,1871/-, from the date of last invoice i.e. 08.01.2020 till 07.02.2022, comes out to be Rs.43,085/-.

7. Plaintiff sent Demand Notice dated 15.12.2021 to the Defendants. However, despite service of legal notice via e-mail, Defendants failed to pay the outstanding dues and replied denying their liability and sought time to check their books. More communication took place but no payment was made. Hence, the Plaintiff filed the present suit.

8. Summons was served upon Defendants by affixation on 18.03.2024, however, Defendants failed to appear before the present Court. Hence, Defendants were proceeded ex-parte on 16.10.2024.

9. Thereafter, matter was fixed for ex-parte evidence. Plaintiff examined himself as PW-1, filed his evidence by way of affidavit Ex. PW- 1/A and relied upon the documents as under:

Sl No.	Documents	Exhibit/ Mark
-----------	-----------	---------------

1. Copy of GST Certificate along with Ex. PW1/1 Annexures (Colly) Digitally signed by VAIBHAV VAIBHAV PRATAP SINGH PRATAP Date:

(At page no. 26 to SINGH 2024.12.09 16:52:48 +0530

28) Pradeep Kalra Vs. M/s Nurturing Green Plantation Pvt. Ltd. & Ors.

2. Copies of Master Data with Ex. PW1/2 Signatory Details (Colly) (At page no.29 and 30)

3. Copies of Invoices issued to the Ex. PW1/3 defendant no. 1 (Colly) (At page no.31 to 34)

4. Copy of Ledger of defendant no. 1 Ex. PW1/4 (At page no.35) (Colly) (At page no.36 to 44)

6. Copy of Legal Notice dated Ex. PW1/6 (At 15.12.2021 page no. 46 to 50)

7. Postal Receipt dated 16.12.2021 Ex. PW1/7 (Colly) (At page no.

51) (Colly) (At page no.

52 to 57)

9. Printout of Email dated 15.12.2021 Ex. PW1/9 (At whereby Legal Notice was sent to page no. 58) the defendants

10. Printout of Email dated 15.12.2021 Ex. PW1/10 whereby one Email Bounced back (At page no. 59) Act

11. Printout of Email dated 15.12.2021 Ex. PW1/11 (At page no. 60)

12. Certificate/ Affidavit under Section Ex. PW1/12 65 B of Indian Evidence Act in (At page no. 62 and

63) support of Electronic Documents

13. Certificate/ Affidavit under Section Ex. PW1/ 13 VAIBHAV Digitally signed by VAIBHAV PRATAP 65 B of Indian Evidence Act PRATAP (At page no. 64 to SINGH Date:

Pradeep Kalra Vs. M/s Nurturing Green Plantation Pvt. Ltd. & Ors.

10. No other witness was sought to be summoned or examined by the Plaintiff. Accordingly, ex-parte evidence was closed.

11. Final arguments were heard at length. The Learned Counsel for the Plaintiff has argued that the Plaintiff has proved the case by unchallenged evidence.

12. I have perused the record in light of the arguments advanced.

13. The present suit is well within the stipulated time of limitation. Further, since the orders were placed at the office of the Plaintiff in Naraina, this Court has the territorial jurisdiction to decide the present case. Since the amount claimed is less than Rs.3,00,000/-, this Court also has the pecuniary jurisdiction to hear this case.

14. Plaintiff has tendered in evidence as PW-1 the relevant documents pertaining to the transaction in question such as invoices, ledger, e-mail communication clearly establishing the commercial relationship between the Plaintiff and the Defendants. However, neither the witness was cross-examined nor any other evidence was led on behalf of the Defendants who were proceeded ex-parte due to non-appearance. Hence, this Court has no reason to disbelieve the assertions of the Plaintiff, which leads to a necessary inference that Defendants have failed to make the payment owed to the Plaintiff along with the interest that accrued thereon.

15. Keeping in view the unrebutted testimony of PW-1 and Digitally signed by documents relied upon, it can be said that the Plaintiff has duly established VAIBHAV VAIBHAV PRATAP PRATAP SINGH SINGH Date:

2024.12.09 16:52:54 +0530 its case that Defendants have unlawfully withheld the amount due to the Pradeep Kalra Vs. M/s Nurturing Green Plantation Pvt. Ltd. & Ors.

Plaintiff.

16. As per the case of the Plaintiff, goods have been supplied to the defendants by four invoices: No. 1087 dated 05.10.2019 for Rs. 8,665/-, 1424 dated 27.11.2019 for Rs. 10,306/-, No. 1466 dated 03.12.2019 for Rs.25,984/- and No. 1750 dated 08.01.2020 for Rs. 41,216/-, totaling Rs. 86,171/-. Pendente lite and future interest @ 24% per annum is sought. However, the Plaintiff cannot be allowed to charge such an exorbitant rate of interest.

17. The Plaintiff can be allowed to charge reasonable interest, whether in the form of penal interest or the normal interest and the charging of unnecessary interest and other charges are totally contrary to the public policy and the same is also against the well settled principles, as postulated in

Section 23 of the Indian Contract Act, 1872.

18. Reliance in this regard can be placed on the judgment of the Hon'ble Division Bench of Hon'ble High Court of Delhi in the case of Pt. Munshi Ram & Associates (P) Ltd. vs DDA, 2010 SCC Online Del 2444 that higher rates of interest, which are against public policy, can be struck down by the Court by finding such rates of interest to be against the public policy. Any contract, which is against the public policy, is void, as per Section 23 of the Indian Contract Act, 1872.

19. Considering the aforesaid ratio laid down by Hon'ble High Digitally signed by VAIBHAV Court and the spirit of the law, plaintiff is awarded pendente lite rate of VAIBHAV PRATAP PRATAP SINGH SINGH Date:

2024.12.09 16:52:57 +0530 simple interest @ 9% per annum and future interest @ 6% per annum from Pradeep Kalra Vs. M/s Nurturing Green Plantation Pvt. Ltd. & Ors.

date of decree till the date of realization of the decreetal amount.

20. The suit of the Plaintiff is thus decreed for an amount of Rs. 1,29,256/- with pendente lite rate of simple interest @ 9% per annum from the date of filing the case till the date of decree and future interest @ 6% per annum from date of decree till the date of realization of the decreetal amount. Costs of the suit are also awarded in favour of the Plaintiff and against the Defendants, as per rules.

21. Decree sheet be prepared accordingly. File be consigned to Record Room after due compliance.

Pronounced by me in the Open Court on 09.12.2024. Digitally signed by VAIBHAV VAIBHAV PRATAP PRATAP SINGH Date: 2024.12.09 SINGH 16:53:03 +0530 (VAIBHAV PRATAP SINGH) Civil Judge, Patiala House Courts New Delhi District, Delhi Pradeep Kalra Vs. M/s Nurturing Green Plantation Pvt. Ltd. & Ors.